

4146/2013 on 12 September, 2014

Author: R. K. Bag

Bench: R. K. Bag

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GB 2014
Ct. No.33

C. O. 4146 of 2013

Ms. Sucharita Biswas
Mr. Debapriya Gupta
..... for the petitioner

The petitioner has preferred this revisional application under Article 227 of the Constitution of India for expeditious hearing and disposal of Matrimonial Suit No. 430 of 2008 pending before the court of learned Additional District Judge, 3rd Court, Howrah.

It appears from the copy of orders passed by learned Judge of the court below that Matrimonial Suit No. 430 of 2008 was instituted by the petitioner against the respondent on 07.07.2008. The said

proceedings under Section 13 of the Hindu Marriage Act was converted into a proceeding under Section 27 of the Special Marriage Act on 06.04.2011. It also appears from record that the court fixed the date for recording of evidence of both parties on 24.01.2012 but only one witness has been examined on behalf of the petitioner from 24.01.2012 till 24.09.2013.

Since the petitioner has prayed in this revisional application for expeditious disposal of the matrimonial proceedings, I am of the view that the instant revisional application may be disposed of without service of notice and copy of the application on the respondent who will not be prejudiced for expeditious disposal of the maintenance proceedings.

Since the maintenance proceedings is pending for final hearing for more than two years from the first date of fixing peremptory hearing, learned Additional District Judge, 3rd Court, Howrah will expedite the process of hearing of the Matrimonial Suit No. 430 of 2008 and dispose of the same within a period of three months from the date of communication of this order by fixing date of hearing on day-to-date basis and without granting unnecessary adjournment to either of the parties to the proceedings.

The revisional application is, thus, disposed of.

Let a copy of this order be sent down to the learned court below for favour of information and necessary action.

Urgent certified photostat copy of this order, if applied for, be given to the parties on priority basis after compliance with all necessary formalities.

(R. K. Bag, J)